

6.4 UNJUSTIFIABLE HARDSHIP

It is the responsibility of the applicant to ensure that the development meets the intent of the *DDA 1992*, and the requirements of the Premises Standards and this DCP. However, it is recognised under the *DDA 1992* that in some circumstances the provision of access may cause unjustifiable hardship by being unreasonable, impractical or uneconomical.

Where a developer believes that compliance with the provisions of this DCP and intent of the *DDA 1992* would cause unjustifiable hardship, an application can be made to Council to be exempted from a particular provision, or to provide access in some other way than that specified in this DCP. The information that must be supplied by the applicant is set out in detail under the Controls section of this Part.

In accordance with the *DDA 1992*, Council's assessment of an application for exemption will consider the extent to which people will benefit or be detrimentally affected by non-compliance with this DCP, the cost of compliance and the ability of the developer to meet the cost. Each claim will be considered by Council on its merits as there is no general formula that can be applied to guide what might be considered to be Unjustifiable Hardship.

It must be emphasised that there is always a requirement to provide whatever access is possible up to the point of unjustifiable hardship.

Objectives

- (a) To have public buildings accessible to all people, consistent with requirements under the *DDA 1992* and the NCC.

Controls

- (a) Claims of unjustifiable hardship will be considered on a case by case basis and on the merit of the case put forward by the applicant.
- (b) Unjustifiable hardship is not supported in new developments.
- (c) An application of unjustifiable hardship must be accompanied by a statement that includes the following information:
 - (i) The nature of the benefit or detriment likely to occur or be suffered by any persons in relation to the proposed development;
 - (ii) Two independent quotes from tradespeople or suppliers for the cost of works to meet the principles of the *DDA 1992*;
 - (iii) The space required to carry out works and the effect this may have upon the viability of the proposed work;
 - (iv) The impact on the heritage significance of the premises or conservation area (where applicable) and details of the work required to provide access;
 - (v) Typographical, technical, operational and safety issues;
 - (vi) Details of investigations into different ways in which the space could be configured or used so as to comply with the applicable access requirements; and
 - (vii) Details of investigations into design alterations so that future works to improve access are not compromised.